

The Law of the Azerbaijan Republic on environmental education and enlightenment of population

The present Law defines the legal, economic and organizational basis of state policy connected with environmental education and enlightenment of population, and regulates relationship in this area.

Chapter I **General provisions**

Article 1. Main concepts

1.0. The main concepts used in the Law have the following meaning:

1.0.1. Environmental education – a process of teaching and learning standards, special knowledge and experiences on the protection of environment and use of natural recourses;

1.0.2. Ecological knowledge – information about environment, ecology, mutual relationship between man and nature;

1.0.3. Ecological enlightenment – spreading experience and ecological knowledge based on the formation of ecological culture;

1.0.4. Ecological culture – body of knowledge and experience on ecological protection of population and country, and mutual relationship of man with environment;

Article 2. Legislation on environmental education and enlightenment of population

The legislation on environmental education and enlightenment of population consists of Constitution of the Republic of Azerbaijan, the current Law, laws, related to education and protection of environment, international agreements that the Republic of Azerbaijan has acceded and other relevant normative legal acts.

.Article 3. Scope of the Law

3.1. The scope of the Law consists of uninterrupted environmental education and enlightenment system that reflects the principles of ecological education and relevant state educational standards. Moreover, information space on environmental education existing at educational establishments;

3.2. The Law applies to the government and municipalities, educational institutions, legal persons and individuals that involved in the enlightenment of people and implemented the management over the environmental education and enlightenment system.

.Article 4. The main principles of the state policy in the area of environmental education and enlightenment of population

4.1. The state policy in the area of environmental education and enlightenment of population is implementing based on requirements of the legislation on environmental protection and education, relevant state programs, and principles existing in the country and international practice.

4.2. Principles of the state policy in the area of environmental education and enlightenment of population consist of:

4.2.1. Creating equal conditions for everyone to receive the general ecological knowledge;

4.2.2. Compulsory environmental education in the secondary education system;

4.2.3. Uninterrupted environmental education and enlightenment process;

4.2.4. Ensuring the publicity in the area of environmental education and enlightenment; 4.2.5. Creating conditions for people and non-governmental organizations to take part in the realization of state policy in the environmental education and enlightenment area

Chapter II

Management in the area of environmental education and enlightenment of population

Article 5. The rights and duties of the public authorities in the area of environmental education and enlightenment

5.1. The rights and duties of the public authorities in the area of environmental education and enlightenment are as follows:

5.1.1. Identification and implementation of main directions of the State policy in the environmental education and enlightenment area;

5.1.2. Organization of environmental education and enlightenment system;

5.1.3. Informational and scientific-methodical provision of the environmental education and enlightenment system;

5.1.4. Ensure legislation compliance with other normative legal acts;

5.1.5. Conduction the State assessment to ensure compliance of environmental education programmes;

5.1.6. Coordination and direction of activities of the government, municipalities, non-governmental organizations, relevant businesses and individuals in the area of environmental education and enlightenment;

5.1.7. Preparation, adoption and implementation of state environmental programs in the area of environmental education and enlightenment;

5.1.8. Preparation and improvement of skills of environmental specialists, scientific, pedagogical and other staff for the environmental education and enlightenment system;

5.1.9. Preparation and implementation of international agreements and programs, interstate treaties in the area of environmental education;

5.1.10. Stimulation activities of legal and physical persons, as well as non-governmental organizations in the area of environmental education and enlightenment;

5.1.11. Ensuring the environmental education and enlightenment activity on the rational use of natural resources, protection of environment and its restoration;

5.1.12. Inclusion of the environmental education and enlightenment issues to the relevant State programs;

5.2. State programs for environmental education and enlightenment are prepared, adopted and published in the manner prescribed by the relevant executive body.

Article 6. Rights and duties of municipalities in the area of environmental education and enlightenment

6.0. The municipalities, in accordance with the Law and within its power have the following rights and duties in the area of environmental education and enlightenment:

6.0.1. Take part in the creation of structures to manage the environmental education within its territory;

6.0.2. Organize environmental education and enlightenment, in accordance with the legislation; create businesses implemented education activity in this field, use the state and municipality educational institutions and education information base;

6.0.3. Make suggestions on development and improvement of the state and regional programs for environmental education and enlightenment of population, according to the legislation,

take part in the implementation of these programs and help to the development of environmental education.

Article 7. Rights and duties of individuals, non-governmental organizations and other legal persons in the area of environmental education and enlightenment of population

7.1. Rights and duties of individuals, non-governmental organizations and other legal persons in the area of environmental education and enlightenment of population;

7.1.1. Participate in the preparation of offers and projects, state programs related to the state policy, conduct monitoring on the quality of environmental education, develop and implement the international co-operation programs;

7.1.2. Send inquiry on environmental information required in order to ensure the educational process, and its receipt;

7.1.3. Create and use educational information and environmental education base;

7.1.4. Environmental knowledge acquisition;

7.1.5. Implement the environmental education in accordance with state educational standards;

7.1.6. Educate each person in the spirit of care and responsibility for nature;

7.2. Legal and physical persons engaged in environmental education should have the relevant document on this area.

Article 8. Coordination of activity in the area of environmental education and enlightenment of population

8.1. The Government, municipalities and non-governmental organizations coordinated their activities in the organization and realization of environmental education and enlightenment of population.

8.2. In order to coordinate these activities the relevant executive body establishes Intersectoral Commission. The activity of this Commission is controlled according to the regulations approved by the executive body.

8.3. Intersectoral Commission could consist of representatives of environmental protection, legislation, media, economics, health, law-enforcement and other State bodies, as well as municipalities and non-governmental organizations.

Article 9. Establishment of Advisory Boards on environmental education and enlightenment

9.1. Advisory Boards have been formed to inform legal and physical persons about issues on ecological education, environmental protection and natural resources use, and provide them with scientific-methodical advice.

9.2. Advisory Boards have been established under the relevant legal persons, executive bodies and municipalities that organized and executed the environmental education and enlightenment.

9.3. The activity of the Advisory Boards is governed by regulations approved by the relevant executive authority.

Chapter III

Standards and economic regulation in the area of environmental education and enlightenment

Article 10. State educational standards in the environmental education area

10.1. State educational standards for the environmental education are prepared and approved by the relevant executive body with participation of state authorities;

10.2. Type of educational institutions in the environmental education area, content of compulsory ecological education programs for forms and stages of study defining in accordance with the relevant state educational standards;

10.3. In order to improve the quality of ecological education and define the knowledge level of experts in this field, state educational standards on environmental education accepted as a basis in the certification of documents.

Article 11. Economic regulation in the area of environmental education and enlightenment

11.1. Financial resources of environmental education and enlightenment activity are as follows:

11.1.1. Deductions from state and local budgets;

11.1.2. Means of state environmental funds;

11.1.3. Grants, donations and other legal incomes.

11.2. Financial resources using for the following purposes:

11.2.1. Protection of environment, definition of environmental education and enlightenment on state, regional and other programs for rational use of national resources;

11.2.2. Organization of material and moral incentives for legal and physical persons implementing the state policy

Chapter IV

Control over the execution of requirements of the legislation on environmental education and enlightenment of population

Article 12. Control over the execution of Law

12.1. State control over the execution of Law is implemented by the relevant executive bodies.

12.2. The relevant executive bodies are prepared and published the annual report on environmental education and enlightenment of population.

12.3. Non-governmental organizations could take part in the implementation of public control over the execution of Law, as well as make suggestions on this area to Intersectoral Commission and Advisory Boards.

Article 13. Responsibility for violations of Law

13.1. Responsibility for violations of the current Law defined with the relevant legislation.

13.2. Arguments in the area of environmental education and enlightenment are considered as defined by legislation.

Chapter V.

International cooperation

Article 14. International cooperation in the area of environmental education and enlightenment

14.1. In order to organize the environmental education and enlightenment efficiently, the use of international practice, issues of inclusion the country to the world environmental education and enlightenment, as well as information space is based on the international cooperation principles.

14.2. International cooperation in the environmental education and enlightenment area is implementing based on legislation of the Republic of Azerbaijan, international treaties and agreements.

14.3. International cooperation is implementing in accordance with treaties, agreements, conventions, and agreements between the Republic of Azerbaijan and legal and physical persons of foreign countries.

President of the Republic of Azerbaijan
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